

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**-----X
LUIS MELENDEZ,**Plaintiff(s),****-against-****THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, THE OFFICE OF THE
DISTRICT ATTORNEY KINGS COUNTY, KEN
THOMPSON, SGT ROWE MARLON, POLICE
OFFICER MOHAMMED REAZ, POLICE OFFICER(S)
"JANE AND JOHN DOE 1-7," AND ASSISTANT
DISTRICT ATTORNEY(S) "JANE AND JOHN DOE
1-10",****Defendant(s).**
-----X**Index No.:****Date Purchased:****SUMMONS****Plaintiff designates
Kings County as the
place of trial.****The basis of venue is:
WHERE
DEFENDANT
"THE OFFICE OF
THE DISTRICT
ATTORNEY KINGS
COUNTY"
RESIDES:
350 Jay Street,
Brooklyn, NY 11201
County of Kings****To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: BROOKLYN, NEW YORK
May 6, 2016


By: C. Laurie Bizzarro
**THE LAW OFFICE OF
C. LAURIE BIZZARRO, P.C.**
Attorneys for Plaintiff(s)
LUIS MELENDEZ
309 82nd Street
Brooklyn, New York 11209
(718) 833-8246
Our File No. 79000-2015

TO:

THE CITY OF NEW YORK, 1 Centre Street, New York, NY 10007;
The Corporation Counsel of the City of New York, 100 Church Street, NYC 10007;

THE NEW YORK CITY POLICE DEPARTMENT, One Police Plaza, New York, NY 10272;

THE OFFICE OF THE DISTRICT ATTORNEY KINGS COUNTY, Renaissance Plaza, 350 Jay Street, Brooklyn, NY 11201.

KEN THOMPSON, c/o **THE OFFICE OF THE DISTRICT ATTORNEY KINGS COUNTY**, Renaissance Plaza, 350 Jay Street, Brooklyn, NY 11201.

SGT ROWE MARLON c/o **THE CITY OF NEW YORK**, 1 Centre Street, New York, NY 10007

POLICE OFFICER MOHAMMED REAZ, c/o **THE CITY OF NEW YORK**, 1 Centre Street, New York, NY 10007

POLICE OFFICER(S) "JANE AND JOHN DOE 1-7," c/o **THE CITY OF NEW YORK**, 1 Centre Street, New York, NY 10007

ASSISTANT DISTRICT ATTORNEY(S) "JANE AND JOHN DOE 1-10," c/o **OFFICE OF THE DISTRICT ATTORNEY KINGS COUNTY**, Renaissance Plaza, 350 Jay Street, Brooklyn, NY 11201

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

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LUIS MELENDEZ,

Plaintiff(s),

-against-

**THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, THE OFFICE OF THE
DISTRICT ATTORNEY KINGS COUNTY, KEN
THOMPSON, SGT ROWE MARLON, POLICE OFFICER
MOHAMMED REAZ, POLICE OFFICER(S) "JANE AND
JOHN DOE 1-7," AND ASSISTANT DISTRICT
ATTORNEY(S) "JANE AND JOHN DOE 1-10",**

Index No.:

**VERIFIED
COMPLAINT**

Defendant(s).
-----X

Plaintiff **LUIS MELENDEZ**, by his attorneys, **THE LAW OFFICE OF C.
LAURIE BIZZARRO, P.C.** complaining of the Defendants **THE CITY OF NEW
YORK, THE NEW YORK CITY POLICE DEPARTMENT, THE OFFICE OF THE
DISTRICT ATTORNEY KINGS COUNTY, KEN THOMPSON, SGT ROWE
MARLON, POLICE OFFICER MOHAMMED REAZ, POLICE OFFICER(S)
"JANE AND JOHN DOE 1-7," AND ASSISTANT DISTRICT ATTORNEY(S)
"JANE AND JOHN DOE 1-10"**, respectfully alleges, upon information and belief, as
follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned the Plaintiff, **LUIS MELENDEZ** was and
still is a resident of Richmond County, State of New York.

2. That at all times hereinafter mentioned the defendant, **THE CITY OF NEW YORK** was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.

3. That at all times hereinafter mentioned the defendant, **THE NEW YORK CITY POLICE DEPARTMENT** was and is a department of the City of New York, duly organized and existing under by virtue of the laws of the State of New York.

4. That at all times hereinafter mentioned the defendant, **THE OFFICE OF THE DISTRICT ATTORNEY KINGS COUNTY (AKA BROOKLYN DISTRICT ATTORNEY'S OFFICE)** was and is an entity operating under the auspices of the City of New York, duly organized and existing under by virtue of the laws of the State of New York.

5. That at all times hereinafter mentioned the defendant, **KEN THOMPSON**, was employed with **THE OFFICE OF THE DISTRICT ATTORNEY KINGS COUNTY**.

6. That at all times hereinafter mentioned the defendants, **ASSISTANT DISTRICT ATTORNEY(S) "JANE AND JOHN DOE 1-10,"** were and still are employed with **THE OFFICE OF THE DISTRICT ATTORNEY KINGS COUNTY**.

7. That at all times hereinafter mentioned the defendants, **KEN THOMPSON** and **ASSISTANT DISTRICT ATTORNEY(S) "JANE AND JOHN DOE 1-10,"** were and still are agents of **THE OFFICE OF THE DISTRICT ATTORNEY KINGS COUNTY**.

8. That at all times hereinafter mentioned the defendant, **SGT ROWE MARLON**, was and still is employed with **THE NEW YORK CITY POLICE DEPARTMENT**.

9. That at all times hereinafter mentioned the defendant, **POLICE OFFICER MOHAMMED REAZ**, was and still is employed with **THE NEW YORK CITY POLICE DEPARTMENT**.

10. That at all times hereinafter mentioned the defendants, **POLICE OFFICER(S) "JANE AND JOHN DOE 1-7,"** were and still are employed with **THE NEW YORK CITY POLICE DEPARTMENT**.

11. That at all times hereinafter mentioned the defendants, **SGT ROWE MARLON**, **POLICE OFFICER MOHAMMED REAZ** and **POLICE OFFICER(S) "JANE AND JOHN DOE 1-7,"** were and still are agents of **THE NEW YORK CITY POLICE DEPARTMENT**.

12. That prior to the institution of this action and within ninety (90) days from the date when the cause of action accrued herein, a notice of claim was duly served upon and filed with the city on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and the city has neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

13. That at all times herein mentioned, the individual defendant officers, lieutenants, detectives and assistant district attorneys were acting within the scope and course of their

employment and relationship with the New York Police Department and the Office of the District Attorney Kings County/Brooklyn District Attorney's Office, and under color of state law.

14. That at all times herein mentioned, all of the actions of individually named defendants alleged herein was done within the scope and course of their employment with the New York Police Department and the Office of the District Attorney Kings County/Brooklyn District Attorney's Office, and under color of the state law.

15. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

FIRST CAUSE OF ACTION

16. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

17. That on or about July 21, 2014 at or around the HRA Offices located at 500 Dekalb Avenue, Brooklyn NY 11205, within the confines of the 79th Precinct of the NYPD, County of Kings, City and State of New York, the City, its agents, servants and employees, including but not limited to the detective/ officers, wrongfully and falsely arrested, imprisoned and detained plaintiff without any right or justifiable grounds therefore.

18. That the aforesaid arrest, detention and imprisonment continued at various locations.

19. That the said arrest, detention and imprisonment was caused by the City, its agents, servants and employees, including but not limited to the police officers, without a warrant and without any reasonable cause or belief that plaintiff was in fact guilty of any crime.

20. That the city, its agents, servants and employees, as set forth above, intended to confine plaintiff; that plaintiff was conscious of the confinement; that plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

21. That by reason of the false arrest, imprisonment and detention of plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and his business and employment, and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

SECOND CAUSE OF ACTION

22. Plaintiff repeats and realleges each and every allegation contained in the First Cause of Action as if fully set forth at length herein.

23. That immediately prior to and during the course of his arrest and detention, plaintiff was assaulted and battered by said police officers.

24. That the reason of the aforesaid, plaintiff sustained personal injuries, endured and will endure pain and suffering and loss of enjoyment of life, and economic loss, and was otherwise damaged.

THIRD CAUSE OF ACTION

25. Plaintiff repeats and realleges each and every allegation contained in the First and Second Causes of Action as if fully set forth at length herein.

26. That prior to and following his arrest, plaintiff was wrongfully, falsely and maliciously charged by defendants and prosecuted with various crimes of which he was innocent.

27. All named Defendants initiated or continued a criminal proceeding against the Plaintiff despite the lack of probable cause, and they did so with the intent of malice in the pursuit of that proceeding. The criminal proceeding was terminated in the favor of plaintiff. Furthermore, Plaintiff suffered special damage to, or interference with, his personal and property rights.

28. That as a result thereof, plaintiff was required to appear in court to defend against these wrongful charges.

29. That on or about May 7, 2015, the aforesaid charges against plaintiff were dismissed.

30. That as a result of the aforesaid malicious prosecution, plaintiff was subjected to great indignities, humiliation ridicule, was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and business and employment, and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

FOURTH CAUSE OF ACTION

31. Plaintiff repeats and realleges each and every allegation contained in the First, Second, and Third Causes of Action as if fully set forth at length herein.

32. That the aforesaid actions, and resulting injuries to plaintiff, were due to the negligence of the City in the hiring, retention, and training of its employees, including the police officers and assistant district attorneys involved in the arrest, assault and battery, and malicious prosecution of the plaintiff.

FIFTH CAUSE OF ACTION

33. Plaintiff repeats and realleges each and every allegation contained in the First, Second, Third, and Fourth Causes of Action as if fully set forth at length herein.

34. That plaintiff was deprived of his rights, privileges and immunities secured by the Constitution of the United States of America and of the state of New York, and his rights pursuant to 42 USC sec.1983 by those who, under color of a statute or regulation of a state, caused plaintiff to be so deprived.

35. That the aforesaid actions by the detectives, officers and prosecutors were done pursuant to an official municipal policy or custom of the city, which policy involved the indiscriminate detention, interrogation, intimidation, and prosecution of individuals who were not engaged in criminal conduct, and for the purpose of thwarting the fair administration of justice.

36. That defendants herein, their agents, servants and employees, motivated in part by class-based, invidiously discriminatory animus, and/or racial and/or ethnic animus, conspired to deprive plaintiff of his federal civil and constitutional rights, in violation of 42 USC 1985.

SIXTH CAUSE OF ACTION

37. Plaintiff repeats and realleges each and every allegation contained in the First, Second, Third, Fourth and Fifth Causes of Action as if fully set forth at length herein.

38. That at all times hereinafter mentioned, and on or about July 21, 2014 to May 7, 2015, the Defendants engaged in extreme and outrageous conduct with respect to their treatment of Plaintiff, 'so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community'

39. Defendants breached a duty owed to plaintiff which either unreasonably endangered the plaintiff's physical safety, or caused the plaintiff to fear for his or her own safety

40. That the defendants disregarded a substantial likelihood of causing severe emotional distress

41. That the defendants conduct caused the harm and outrage suffered by Plaintiff.

42. That by reason of the foregoing, Plaintiff suffered physical injuries, severe emotional distress, mental injuries, deprivation of privacy, terror, humiliation, damage to reputation and other severe psychological injuries.

43. The aforementioned occurrence took place due to the willful, wanton and

intentional or reckless acts and/or omissions of the Defendants and their agents, servants, employees and/or licensees, all of whom were acting within the scope of their authority, within the scope of and in furtherance of their employment and in furtherance of their agency.

44. The acts complained of herein constitute negligent infliction of emotional harm and distress.

45. That by reason of the foregoing, Plaintiff was caused to sustain serious injuries and to suffer pain, shock and mental anguish; these injuries and their effects will be permanent; as a result of said injuries. Plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and, as a further result, Plaintiff will and will continue to be rendered unable to perform his normal activities and duties and in consequence has sustained a loss there from.

SEVENTH CAUSE OF ACTION

46. Plaintiff repeats and realleges each and every allegation contained in the First, Second, Third, Fourth, Fifth and Sixth Causes of Action as if fully set forth at length herein.

47. That at all times hereinafter mentioned, and on or about July 21, 2014 to May 7, 2015, Defendants engaged in extreme and outrageous conduct with respect to their treatment of Plaintiff 'so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.'

48. That Defendants intended to cause or recklessly disregarded a substantial

likelihood of causing severe emotional distress to Plaintiff.

49. That Defendants' conduct caused the harm, outrage emotional distress and physical injury suffered by Plaintiff.

50. That by reason of the foregoing, Plaintiff suffered physical injuries, severe emotional distress, mental injuries, deprivation of privacy, terror, humiliation, damage to reputation and other severe psychological injuries.

51. The conduct of Defendant was so extreme and outrageous that it 'transcends the bounds of decency as to be regarded as atrocious and intolerable in a civilized society.'

52. The aforementioned occurrence took place due to the willful, wanton and intentional acts and/or omissions of the Defendants and their agents, servants, employees and/or licensees, all of whom were acting within the scope of their authority, within the scope of and in furtherance of their employment and in furtherance of their agency.

53. The acts complained of herein constitute intentional infliction of emotional harm and distress.

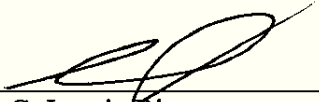
54. That by reason of the foregoing, Plaintiff was caused to sustain serious injuries and to suffer pain, shock and mental anguish; these injuries and their effects will be permanent; as a result of said injuries. Plaintiff has been caused to incur and will continue to incur expenses for medical care and attention and, as a further result: Plaintiff will and will continue to be rendered unable to perform his normal activities and duties and in consequence has sustained a loss there from.

55. That by reason of the foregoing, Plaintiff, was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for his pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

DATED: Brooklyn, New York
May 6, 2016

Yours, etc.



By: C. Laurie Bizzarro
THE LAW OFFICE OF
C. LAURIE BIZZARRO, P.C.
Attorneys for Plaintiff(s)
LUIS MELENDEZ
309 82nd Street
Brooklyn, New York 11209
(718) 833-8246
Our File No. 79000-2015

ATTORNEY'S VERIFICATION

C. LAURIE BIZZARRO, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:
I am the principal of **THE LAW OFFICE OF C. LAURIE BIZZARRO, P.C.**, attorneys of record for Plaintiff(s), **LUIS MELENDEZ**.

I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff(s) is that Plaintiff(s) is/are not presently in the county wherein the attorneys for the plaintiff(s) maintain their offices.

DATED: New York, New York
May 6, 2016



C. LAURIE BIZZARRO

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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LUIS MELENDEZ,

CERTIFICATION

Plaintiff(s),

-against-

**THE CITY OF NEW YORK, THE NEW
YORK CITY POLICE DEPARTMENT, THE
OFFICE OF THE DISTRICT ATTORNEY
KINGS COUNTY, KEN THOMPSON, SGT
ROWE MARLON, POLICE OFFICER
MOHAMMED REAZ, POLICE OFFICER(S)
"JANE AND JOHN DOE 1-7," AND
ASSISTANT DISTRICT ATTORNEY(S)
"JANE AND JOHN DOE 1-10",**

Defendant(s).

-----X

=====X

I hereby certify pursuant to 22 NYCRR§130-1.1a(b) that, to the best of my knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of the papers listed below or the contentions therein are not frivolous as defined in 22 NYCRR§130-1.1(c) :

SUMMONS AND VERIFIED COMPLAINT

Dated: BROOKLYN, NEW YORK
May 6, 2016


By: C. Laurie Bizzarro
**THE LAW OFFICE OF
C. LAURIE BIZZARRO, P.C.**

Attorneys for Plaintiff(s)
LUIS MELENDEZ
309 82nd Street
Brooklyn, New York 11209
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NY 10007

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YORK**, 1 Centre Street, New York, NY 10007

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